

Court No. - 32

Case :- WRIT - C No. - 44425 of 2013

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Sunil Ambwani,J.

Hon'ble Surya Prakash Kesarwani,J.

The Advocates of the Court are abstaining from work.

List in the next cause list.

Order Date :- 22.8.2013

Ak/

Court No. - 36

Case :- WRIT - C No. - 44425 of 2013

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

Put up on 4.9.2013 in the additional cause list so as to enable Sri Pranjal Mehrotra, learned counsel for the respondents to obtain instructions or file counter affidavit.

Order Date :- 30.8.2013

dps

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Court No. - 36

Case :- WRIT - C No. - 44425 of 2013

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

The grievance of the petitioner is that in spite of the petitioner having been acquitted in the criminal case, which was going on against him for alleged theft of electricity, the respondents are not restoring the electricity supply.

According to the impugned order, the respondents claim that they have filed Criminal Appeal No. 26 of 2012 - State Versus Rais Ahmad challenging the judgment of trial Court dated 21.10.2011 in SST No. 85 of 2008, wherein, the petitioner was acquitted of the criminal charges levelled against him. The petitioner submits that according to the enquiry obtained by him, no such appeal is pending. It has further been submitted that in any case even if the appeal has been filed, there is no stay order and in such circumstances, according to Clause 8.2(x)(h) of the Electricity Supply Code, 2005, the licensee is liable to restore the electric connection in the original meter.

Sri Pranjal Mehrotra, who appears on behalf of the respondents state that according to the instructions received by him, the appeal has been filed but the department is not certain whether any stay order has been granted or not.

In view of the aforesaid facts and circumstances of the case and in view of the specific provisions under Clause 8.2(x)(h) of the Supply Code, it is hereby directed that the respondents shall within three weeks of production of a certified copy of this order, restore the electric supply of the petitioner or they may show cause by filing counter affidavit.

List this matter on 3rd October 2013.

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Order Date :- 4.9.2013

AM/-

Court No. - 36

Case :- WRIT - C No. - 44425 of 2013

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

Passed over on the illness slip of Sri Pranjal Mehrotra, counsel for the respondents.

List on 22.10.2013.

(Manoj Kumar Gupta, J) (Vineet Saran, J)

Order Date :- 3.10.2013

SKS

Court No. - 10

Case :- WRIT - C No. - 44425 of 2013

Petitioner :- Rais Ahmad

Respondent :- U.P. Power Corporation Ltd. And 3 Others

Counsel for Petitioner :- Kshitij Shailendra

Counsel for Respondent :- Pranjal Mehrotra, S.C.

Hon'ble Arun Tandon, J.

Hon'ble Anjani Kumar Mishra, J.

Petitioner was alleged to be involved in theft of electricity resulting in Criminal Case no.148 of 2008 under Section 135 of the Electricity Act 2003. The petitioner has been acquitted in the said criminal case under order dated 21.10.2011. He made an application for restoration of the supply of electric energy. This application has been rejected by the Executive Officer vide order dated 10.07.2013 after recording that against the order of acquittal Criminal Appeal no.26 of 2012 has been filed and is pending.

According to the petitioner the recital so made in the order is incorrect, in as much as, only an application under Section 378 Cr.P.C was filed by the Corporation. This has been rejected by the High Court on 31.07.2012.

Having heard counsel for the parties and examining the records of present writ petition, we are of the considered opinion that if the application made by the Corporation under section 378 Cr.P.C has been rejected, the respondent no.2 shall reconsider the application of the petitioner for supply of electrical energy strictly in accordance with the provisions applicable preferably within 4 weeks from the date of production of certified copy of this order by means of a reasoned order. All consequential actions shall be taken thereafter.

Writ petition is disposed of.

Order Date :- 22.10.2013/M. Himwan